

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cloey Romans	Team: Squad #11	CCRB Case #: 202200678	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 01/30/2022 9:40 PM	Location of Incident: Inside of the 77th Precinct Stationhouse	18 Mo. SOL 7/30/2023	Precinct: 77		
Date/Time CV Reported Sun, 01/30/2022 10:30 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/03/2022 11:35 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DET Alex Viera	14168	945080	077 PCT
2. DT3 David Gomez	01264	950508	077 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Samantha Love	02842	966677	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DT3 David Gomez	Abuse: Detective David Gomez threatened § 87(2)(b) with the use of force.	A . Unsubstantiated
B . DT3 David Gomez	Discourtesy: Detective David Gomez spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . DET Alex Viera	Force: Police Officer Alex Viera used physical force against § 87(2)(b)	C . Substantiated
D . DET Alex Viera	Force: Police Officer Alex Viera hit § 87(2)(b) against an object.	D . Substantiated

Case Summary

On January 30, 2022, Captain Michael Sambriski of the 77th Precinct submitted the following complaint with IAB on behalf of § 87(2)(b) generating log § 87(2)(b). On February 3, 2022, the CCRB received this complaint.

At approximately 5:46 p.m. on January 30, 2022, § 87(2)(b) was arrested by Detective Alex Viera and Police Officer Samantha Love of the 77th Precinct inside § 87(2)(b) Brooklyn, for criminal possession of a loaded firearm. § 87(2)(b) was removed to the 77th Precinct stationhouse and lodged into the prisoner-holding cells by Det. Viera.

At approximately 9:40 p.m., Det. Viera removed § 87(2)(b) from the holding cells for § 87(2)(b) to speak with Detective David Gomez of the 77th Detective Squad regarding the gun § 87(2)(b) had on his person when he was arrested. Det. Viera brought § 87(2)(b) to the second floor of the 77th Precinct Stationhouse where Det. Gomez asked § 87(2)(b) about the firearm. § 87(2)(b) refused to speak to Det. Gomez and requested he be brought back to the holding cells on the first floor. Det. Gomez allegedly began yelling at § 87(2)(b) and told him, “I’ll fuck you up” (**Allegation A: Abuse – Unsubstantiated, Allegation B: Discourtesy – Unsubstantiated**). Det. Viera began escorting § 87(2)(b) back toward the holding cells on the first floor; when Det. Viera and § 87(2)(b) passed a set of protruding lockers in the second-floor hallway, Det. Viera pushed § 87(2)(b) into the lockers (**Allegations C and D: Force – Substantiated**), causing a facial laceration on § 87(2)(b) right cheek. § 87(2)(b) was then placed back into the first-floor holding cells until an ambulance arrived. § 87(2)(b) was removed to § 87(2)(b) where he was treated for his facial injury. After his removal to § 87(2)(b) § 87(2)(b) had no further interaction with Det. Viera.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Body-worn Camera video was obtained for Det. Viera and PO Love (Board Review 05). Stationhouse footage was obtained from the 77th Precinct Stationhouse (Board Review 04).

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective David Gomez threatened § 87(2)(b) with the use of force.

Allegation (B) Discourtesy: Detective David Gomez spoke discourteously to § 87(2)(b)

§ 87(2)(b) declined to speak about his arrest at § 87(2)(b) Brooklyn, or the events preceding it. § 87(2)(b) stated that approximately one hour after being processed for arrest and placed into the 77th Precinct holding cells, he requested to use the bathroom and Det. Viera removed him from the holding cell and placed him into handcuffs. § 87(2)(b) believed he was being taken to the bathroom, but Det. Viera instead escorted § 87(2)(b) to the second floor and took him into a room where Det. Gomez was standing. There were no other civilians or officers present. § 87(2)(b) told Det. Gomez that he wanted to be taken back downstairs and Det. Gomez requested that § 87(2)(b) instead go into an interrogation room to discuss his arrest. § 87(2)(b) refused and again requested he be brought downstairs. Det. Gomez then allegedly said, “I’ll fuck you up” and told Det. Viera to “get this stupid guy out of here.” Det. Gomez was approximately one inch from § 87(2)(b) face when making these statements (Board Review 01).

Det. Gomez stated he was notified by Det. Viera of an arrest in which the individual was found in possession of a firearm. Based on NYPD procedure, the arrestee needed to be interviewed by a member of the Detective Squad and Det. Gomez was next in the queue. Det. Gomez prepared the Detective Interview Room for § 87(2)(b). Before the incident, Det. Gomez denied knowing who § 87(2)(b) was and denied having any further information about § 87(2)(b) beyond what he was told by Det. Viera. Det. Viera then escorted § 87(2)(b) into the interview room and Det. Gomez described § 87(2)(b) as “irate” and “cursing,” though § 87(2)(b) was not taking any specific movements with his body and was rear-cuffed. Det. Gomez told § 87(2)(b) he wanted to speak to him about the gun he was arrested with, and § 87(2)(b) responded, “I’m not talking to you. What did I tell you? Get the fuck out of my face. I’m not telling you shit.” Det. Gomez told Det. Viera that if § 87(2)(b) didn’t want to speak with him, Det. Viera could take § 87(2)(b) back downstairs to the holding cells. Det. Viera then escorted § 87(2)(b) from the room. Det. Gomez denied ever saying “I’ll fuck you up” or referring to § 87(2)(b) as “stupid.” Det. Gomez denied using any profanities with § 87(2)(b) or threatening him in any way (Board Review 03).

Det. Viera’s testimony was consistent with Det. Gomez’s, though Det. Viera described § 87(2)(b) as “compliant” and calm while being escorted to the second floor from the holding cells. Det. Viera stated § 87(2)(b) demeanor changed once in the interview room and that he immediately asked to leave. Once § 87(2)(b) requested to be brought back downstairs, Det. Viera complied, and § 87(2)(b) had no further interaction with Det. Gomez. Det. Viera denied recalling Det. Gomez say, “I’ll fuck you up” or refer to § 87(2)(b) as “stupid” (Board Review 02).

There is no stationhouse footage or BWC video which captures any interaction § 87(2)(b) has with Det. Gomez (Board Review 04 and 05).

While it is undisputed that § 87(2)(b) and Det. Gomez had a contentious conversation at the 77th Precinct Stationhouse, § 87(2)(g)

Therefore, it is recommended that **Allegations A and B be Unsubstantiated.**

Allegation (C) Force: Police Officer Alex Viera used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Alex Viera hit § 87(2)(b) against an object.

§ 87(2)(b) stated that after his interaction with Det. Gomez, Det. Viera escorted § 87(2)(b) out of the interview room and back through the second floor hallway. Det. Viera was holding § 87(2)(b) by his left bicep and guiding him down the hallway by his arm, pushing him forward. § 87(2)(b) was handcuffed, and leg shackled while being escorted. Det. Viera asked § 87(2)(b) “Why did you just do that?” which § 87(2)(b) interpreted to be in reference to his refusal to speak with Det. Gomez. Det. Viera then slammed § 87(2)(b) face into the side of a set of lockers they were passing, with § 87(2)(b) right cheek coming into blunt contact with the flush portion of the side locker. Det. Viera then pulled § 87(2)(b) away from the locker and pushed him again into the wall, which was directly next to the lockers, with § 87(2)(b) right side body coming into contact with the wall. § 87(2)(b) began screaming, “What are you doing?” and Det. Viera continued walking § 87(2)(b) through the hallway, back downstairs, where he was then placed into the holding cell. Det. Viera did not say anything further to § 87(2)(b). § 87(2)(b) stated there were no other officers present in the hallway who observed Det. Viera push him. Once back in the holding cells, an officer gave § 87(2)(b) a paper towel to wipe the blood from his face and an ambulance was called. § 87(2)(b) was removed to § 87(2)(b) where he received stitches to his cheek (Board Review 01).

Det. Gomez stated that once § 87(2)(b) was removed from the interview room, he did not see § 87(2)(b) again and denied seeing § 87(2)(b) be escorted through the hallway or past the lockers. Det. Gomez denied seeing § 87(2)(b) come into contact with the lockers and denied hearing any struggle or learning of § 87(2)(b) injuries (Board Review 03).

Det. Viera stated that after § 87(2)(b) requested to be taken back to the holding cells, he began escorting § 87(2)(b) back through the hallway toward the first floor. Det. Viera held § 87(2)(b) by his left arm and guided him forward with this grip, walking on § 87(2)(b) left rear side. § 87(2)(b) became “upset” and told Det. Viera that he needed the name of Det. Gomez, which Det. Viera provided. While walking, § 87(2)(b) began to pull away from Det. Viera and told him, “Fuck you, I’m not going anywhere.” While doing this, the COVID face mask § 87(2)(b) was wearing began ‘riding up’ on § 87(2)(b) face and partially covered § 87(2)(b) eyes. Simultaneously, § 87(2)(b) came loose from Det. Viera’s grip and § 87(2)(b) walked into the side of the lockers. Det. Viera initially stated that § 87(2)(b) made contact with the lockers accidentally when he was walking and his eyes were partially obstructed, but Det. Viera later stated that he believed § 87(2)(b) intentionally made contact with the lockers and injured himself on purpose. Det. Viera denied pushing § 87(2)(b) into the lockers or a wall and denied having physical contact with § 87(2)(b) when he sustained his injury. Upon § 87(2)(b) coming into contact with the locker, a ‘red mark’ appeared on § 87(2)(b) face mask and Det. Viera removed the mask, then walked § 87(2)(b) back downstairs and placed him into the holding cells. Det. Viera notified a supervisor who then requested an ambulance and § 87(2)(b) was removed to § 87(2)(b). Det. Viera denied having any further contact with § 87(2)(b) after his removal (Board Review 02).

§ 87(2)(b) Arrest Report was prepared at 5:46 p.m. on January 30, 2022, and notes § 87(2)(b) physical condition as “apparently normal” and his complexion as “clear” (Board Review 06). § 87(2)(b) arraignment sheet notes that § 87(2)(b) arrest photo was taken at 1:40 a.m. on January 31, 2022, at Brooklyn Central Booking (Board Review 07). § 87(2)(b) arrest photo from Brooklyn Central Booking shows a crescent shaped laceration on his right cheek which appears swollen, with stitches (Board Review 08).

There are no BWC videos that capture any officer’s interactions with § 87(2)(b) after he is initially lodged in the prisoner-holding cells of the 77th Precinct Stationhouse at 5:55 p.m. on January 30, 2022. BWC videos captured during § 87(2)(b) arrest and arrest processing at the 77th Precinct Stationhouse no facial lacerations or injuries of any kind on § 87(2)(b) up until approximately 6 p.m. on January 30, 2022 (Board Review 05).

Stationhouse footage from the 77th Precinct Stationhouse between 9 p.m. and 11 p.m. on January 30, 2022, captures § 87(2)(b) being removed from Prisoner Holding Cells at approximately 9:40 p.m. (beginning at the 40:04 time stamp). During his removal, § 87(2)(b) has no injuries and is seen wearing a COVID-19 disposable face mask that covers his mouth and nose area. The face mask does not appear to move at any time during the cuffing and removal of § 87(2)(b) from the holding cell and at no time is § 87(2)(b) seen adjusting the mask. The face mask is not in the vicinity of § 87(2)(b) eyes. Det. Viera handcuffs § 87(2)(b) and removes him from the holding cell. There are no cameras in the stationhouse which capture § 87(2)(b) between him being removed from the holding cell at 9:40 p.m. and returned to the holding cell at 9:47 p.m. There are no stationhouse cameras on the second floor of the precinct which capture the area where the lockers are. The alleged force is not captured on the stationhouse video. Det. Viera brings § 87(2)(b) back to the holding cells at 9:47 p.m. (beginning at the 47:25 time stamp). At that point, § 87(2)(b) is no longer wearing his facemask and is visibly bleeding from his right cheek. § 87(2)(b)

§ 87(2)(b) is still in rear handcuffs. PO Love hands § 87(2)(b) paper towels to clean his bleeding face (beginning at the 49:02 time stamp). EMS arrives at 10:03 p.m. and removes § 87(2)(b) from the holding cell (beginning at the 1:03:42 time stamp). There is no further relevant stationhouse footage captured (Board Review 04).

A photo of the set of lockers in question show that the lockers are approximately the height of a standard door (6.6 feet) and extend into the hallway approximately three feet, leaving roughly a five foot distance in the hallway for passing. The locker structure is standard, with 90 degree meeting points on all four corners; none of these edges appear any more acute than the standard meeting point of two flat planes. This photograph was taken by PO Viera and obtained during PO Viera's CCRB appearance (Board Review 09).

The Medical Treatment of Prisoner (MTP) Report § 87(2)(b) was prepared for § 87(2)(b) after his injury notes "at t/p/o above defendant suffered a facial laceration to his face by striking his face towards a single metal storage locker located in the hallway while defendant was walking away from a/o." The MTP notes that § 87(2)(b) was leg shackled when the injury was obtained. An attached photo of § 87(2)(b) injury shows an actively bleeding facial laceration to his upper right cheek. The MTP was prepared by Det. Viera. A Threat Resistance and Injury Worksheet (TRI) was prepared and is consistent with the MTP (Board Review 10).

§ 87(2)(b) medical records from § 87(2)(b) note that § 87(2)(b) sustained a "stellate laceration" across the soft tissue of his upper right cheek, with active bleeding at the time of admission § 87(2)(a) – PHL 18(6). Within the medical records, it is noted that § 87(2)(b) stated he obtained the injury when an officer "shoved him" and at another point in the medical records, it notes that § 87(2)(b) stated he sustained the injury from a fall (Board Review 11).

NYPD Patrol Guide section 208-06 states that when using leg restraints on a prisoner, the escorting officer is to exercise caution to prevent the prisoner from falling (Board Review 13).

§ 87(2)(g)
§ 87(2)(b) injury is uncontested and corroborated, though the origin of the injury is disputed between the two parties. § 87(2)(g)
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Therefore, it is recommended that **Allegations C and D be Substantiated.**

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 14).
- Detective David Gomez has been a member of service for 11 years and has been a subject in three CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
- Police Office Alex Viera has been a member of service for 15 years and has been a subject in 15 CCRB complaints and 33 allegations, of which three were substantiated:
 - #201706371 involved a substantiated allegation of Abuse: Frisk and a substantiated allegation of Abuse: Vehicle Stop against Det. Viera. The Board recommended Charges and PC found Det. Viera Not Guilty.
 - #201706371 involved a substantiated allegation of Discourtesy: Word against Det. Viera. The Board recommended Charges and Det. Viera forfeited two vacation days. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of December 19, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 15).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Squad: 11

Investigator:	Cloey Romans Signature	Inv. Cloey Romans Print Title & Name	1/03/2022 Date
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Squad Leader:	Edwin Pena Signature	IM Edwin Pena Print Title & Name	01/03/2022 Date
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Reviewer:	Signature	Print Title & Name	Date
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